

COMMONWEALTH OF AUSTRALIA

Competition and Consumer Act 2010 (Cth)

IN THE AUSTRALIAN COMPETITION TRIBUNAL

File No: ACT 1 of 2026

Re: Application for review of a determination made by the Australian
Competition and Consumer Commission under subsection 51ABZE(1) of the
Competition and Consumer Act 2010 (Cth)

Applicant: Coles Supermarkets Australia Pty Ltd

DIRECTIONS

TRIBUNAL: Justice O'Bryan (President)

DATE: 9 September 2026

WHERE MADE: Melbourne

THE TRIBUNAL NOTES THAT:

- A. On 4 September 2026, Coles Supermarkets Australia Pty Ltd filed an application pursuant to s 100S(2)(b) of the *Competition and Consumer Act 2010 (Cth)* to be allowed to provide new information, documents and evidence for the purposes of the Tribunal's review (**Section 100S Application**), supported by:
- a. an affidavit of Liza Windel Carver sworn 27 August 2026;
 - b. an affidavit of Andrew Eastwood sworn 4 September 2026;
 - c. an affidavit of Linda Catherine Evans sworn 4 September 2026; and
 - d. written submissions dated 4 September 2026.

THE TRIBUNAL DIRECTS THAT:

1. By 16 September 2026, each of O'Connor Fresh Pty Ltd ATF O'Connor Fresh Trust (**O'Connor IGA**) and the Australian Competition and Consumer Commission file and serve a

written submission, limited to 10 pages, responding to the Section 100S Application, together with any affidavit material in support of the written submission.

2. The Section 100S Application will be listed for hearing by the Tribunal on a date to be fixed.

Date: 9 September 2026



Registrar

Australian Competition Tribunal

